

February 12, 2009



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11697
(SEVENTH REVISION)

EXPIRATION DATE: January 31, 2010

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: U.S. Department of Defense (DOD)
(FORMER GRANTEE: The U.S. Department of
Defense (DOD))
Scott Air Force Base, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of Class 1 explosives in LASH barges which are stowed in certain hold spaces at a distance less than 3 meters (10 Feet) from a bulkhead of a machinery space. The bulkhead of a machinery space separating that machinery space from a cargo hold to which this special permit applies is of ½ inch steel construction insulated on the cargo hold side to A-60 standard in accordance with § 176.116(e)(3). “A-60 standard” means that the bulkhead will retard the passage of heat, smoke, and flame for at least one hour. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.

February 12, 2009

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 176.116(e) (3), except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on November 28, 2008.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Ammunition and other military explosives -- proper shipping names as appropriate	1 *	Various	N/A

*Various divisions and capability groups.

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. The vessels and respective hold spaces to which this special permit applies are:

VESSEL	CARGO HOLDS TO WHICH SPECIAL PERMIT APPLIES
SS Green Harbor SS Green Valley SS Jeb Stuart	Cargo holds 4 and 6
Austral Rainbow	Cargo hold 3

And other vessels of similar design to be identified in writing to and acknowledged in writing by the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

- b. LASH barges are SABS-classed, welded steel construction; 61'=" long overall by 31'-2" wide overall by

February 12, 2009

14'-5" deep. Barges have 1/4" shell plating, are fully framed and double bottomed. They are designed to be stacked in cells above or below deck and lifted on and off the vessel fully loaded.

c. Ammunition (Class 1 explosives) stowed in the barges is palletized, blocked and braced in accordance with applicable 49 CFR regulations and DOD instructions.

d. When barges are stowed fore or aft of the vessel's machinery space, there is at least 12 inches of void space separating the machinery space bulkhead from the skin of the barge.

e. The barges are under climate-control (temperature and humidity) monitored by the vessel's crew typically every half hour each day.

8. MODES OF TRANSPORTATION AUTHORIZED. Cargo vessel.
9. MODAL REQUIREMENTS. A current copy of this special permit must be carried on board each cargo vessel used to transport the hazardous materials covered by this special permit.
10. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

February 12, 2009

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln